

SIKKIM



GOVERNMENT

GAZETTE

**EXTRAORDINARY
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Gangtok

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No. 187

**LOKAYUKTA SIKKIM
GANGTOK**

No.6/LOK/16

Dated: 19.3.2016

NOTIFICATION

In exercise of the powers conferred by sub-section (ii) of section 43 of the Sikkim Lokayukta Act, 2014 (6 of 2014), the Lokayukta, Sikkim hereby makes the following regulations to carry out the provisions of the Act, namely:-

Short title and commencement

1. (1) These regulations may be called the Sikkim Lokayukta Regulations, 2016.
- (2) They shall be deemed to have come into force on the 1st day of August, 2014.

Definitions

2. (1) In these regulations, unless the context otherwise requires,-
 - (a) "Act" means the Sikkim Lokayukta Act, 2014;
 - (b) "Administrative function" means an act or action taken by the Lokayukta in matters relating to either Registry of the Lokayukta or in relation to complaint but does not require the presence of parties in the complaint;
 - (c) "Complainant" means and includes any individuals, association of individuals in any form, society, trust or any juristic entity, who has made a complaint;
 - (d) "Lokayukta" means the Lokayukta, Sikkim, constituted under sub-section(1) of section 3 of the Act;
 - (e) "Quasi-judicial function" means an order or direction issued by Lokayukta in relation to a complaint and would ordinarily require the presence of the public servant in the complaint and the Lokayukta sitting as a bench

to hear the public servant either in person or represented by his lawyers:

Provided that where a matter has been dealt quasi judicially and the public servant were duly represented by his Lawyers or the public servant appeared in person and if subsequently the public servant remained absent, the bench shall be competent to pass necessary order/ orders in the absence of the public servant or his lawyer.

(f) "Registry" means the office of the Lokayukta, Sikkim;

(g) "rules" means the Sikkim Lokayukta Rules, 2014.

(2) Words and expressions defined in the Act and used but not defined in these regulations shall have the same meaning respectively assigned to them in the Act and the rules made there under.

**Form and Procedure of
Complaint, Preliminary
Inquiry/Inquiry,
Investigation and
Prosecution**

3. (1) Every complaint shall be made in the form as may be provided in this behalf:

Provided that where the State Government or any of its department or organization namely public sector undertaking/semi government undertaking or establishment has received any complaint such complaint if it exclusively relates to preliminary inquiry or investigation by the Lokayukta shall be forwarded to the Lokayukta and be accompanied with a written note of the head of the concerned organization/ establishment.

(2) The provisions contained in sub-regulation (1) above, shall not apply where a matter has stood transferred to Lokayukta in terms of provision of section 45 of the Act, such matter may be dealt by the Lokayukta on the basis of orders as may be passed from time to time.

(3) Every complaint, other than a complaint by Government, shall be accompanied by a Bank Receipt of Rs.10/- (Rupees ten) only deposited under major head 0070/ OAS (E) Lokayukta complaint fee. In case of poor individual as defined in section 12 of the Legal Services Authority Act, 1987, such payment is dispensed with;

(4) Where a complaint stood transferred in terms of provision of Section 45 of the Sikkim Lokayukta Act, 2014, the provision of sub-regulation (3) above shall not apply.

(5) Complaint may be filed with the Office of the Registry or be sent through website of the Lokayukta or by post.

